

	2024-01428549	Code Civ. Proc., § 2031.010(a) provides that “[a]ny party may obtain discovery ... by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.” The motion is brought pursuant to Code Civ. Proc., § 2031.310, which states in part, <u>“[o]n receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand...”</u> (Emphasis added.) Defendant acknowledges in its motion that it never served a notice/request for inspection pursuant to Code Civ. Proc., § 2031.010 et seq. (Rabin Decl., ¶ 6.) Despite this, Defendant complains that Plaintiff’s counsel has not produced the subject vehicle for inspection and seeks to compel the same. Because Defendant is seeking the inspection, the onus is on Defendant to propound an actual inspection demand per the code on Plaintiff. Code Civ. Proc., § 2031.030 specifies the form and content of the demand, and § 2031.040 prescribes the method for service. While this concerns inspection of a vehicle, as opposed to documents, the procedure is the same. The motion is denied. Given that Defendant never served an inspection demand, there is nothing to compel a response to, under Code Civ. Proc., § 2031.310. Plaintiff shall give notice.
7	Fisher vs. Ford Motor Company 2024-01450044	Motion for Summary Judgment and/or Adjudication Defendant Ford Motor Company’s motion for summary adjudication on the first, second, third, and sixth causes of action asserted against it in plaintiff Jeffrey Fisher’s first amended complaint (“FAC”) is denied. Defendant Lincoln South Coast’s motion for summary judgment on the fifth cause of action for negligent repair asserted in the FAC – the only cause of action directed against Lincoln South Coast – is denied. Purportedly, the motion for summary adjudication and judgment was personally served on Plaintiff’s counsel. But the only proof of service provided is by an employee of Defendants’ counsel who arranged for